

Parmeshwar Prasad v. State of U.P.

Allahabad High Court · Division Bench · 3 March 2016 · Writ - C No. 9128 of 2016 · **Writ petition dismissed as filed without examining s.161 of the Electricity Act, 2003.**

HEADNOTE

A writ petition contending that no statutory provision exists in Uttar Pradesh for payment of compensation where injury or death is caused by the negligent act of a licensee under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005 was dismissed as misconceived, the Court holding that it had been filed without examining s.161 of the Electricity Act, 2003, which provides the statutory mechanism for inquiry into such accidents.

FACTUAL SUMMARY

Parmeshwar Prasad filed a writ petition contending that there was no statutory provision applicable in Uttar Pradesh for the payment of compensation where injury or death is caused by the negligent act of a licensee under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. The State opposed the petition, and the Court found the premise unexamined against the existing statutory scheme.

HOLDING-UNITS

HOLDING-UNIT · EA2003::161

Compensation for accidents caused by a licensee's negligence

HOLDING

A writ complaining of the absence of any statutory provision for compensation where injury or death is caused by a licensee's negligence is misconceived when it ignores s.161 of the Electricity Act, 2003, which provides the statutory mechanism for inquiry into such accidents. The petition, filed without examining s.161, is dismissed.